

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Delene Bromirski	Team: Team # 5	CCRB Case #: 200713931	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 09/25/2007 11:59 AM	Location of Incident: § 87(2)(b) and the 90th Precinct stationhouse	18 Mo. SOL 3/25/2009	Precinct: 90
Date/Time CV Reported Tue, 09/25/2007 12:46 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/25/2007 12:46 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kenneth Douglas	01703	906146	090 PCT
2. SGT Antonio Hernandez	04132	925446	090 PCT
3. POM Winston Willabus	25301	935969	090 PCT
4. POM Michael Manaloris	04643	928692	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dennis Ferrer	02919	921334	090 PCT
2. POM Kevin Hutchinson	18979	930384	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Antonio Hernandez	Force: At § 87(2)(b) in Brooklyn, Sergeant Antonio Hernandez used physical force against § 87(2)(b)	A . Exonerated
B . POM Michael Manaloris	Force: At § 87(2)(b), Michael Manaloris used physical force against § 87(2)(b)	B . Exonerated
C . POM Winston Willabus	Force: At § 87(2)(b) in Brooklyn, Police Officer Winston Willabus used physical force against § 87(2)(b)	C . Exonerated
D . POM Michael Manaloris	Force: At § 87(2)(b), Michael Manaloris struck § 87(2)(b) with an asp.	D . Exonerated
E . SGT Antonio Hernandez	Force: At § 87(2)(b), Sergeant Antonio Hernandez struck § 87(2)(b) with an asp.	E . Exonerated
F . SGT Antonio Hernandez	Abuse: At the 90th Precinct stationhouse, Sgt. Antonio Hernandez strip-searched § 87(2)(b)	F . Exonerated
G . POM Kenneth Douglas	Abuse: At the 90th Precinct stationhouse, Police Officer Kenneth Douglas threatened to arrest § 87(2)(b)	G . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
H . POM Kenneth Douglas	Abuse: At the 90th Precinct stationhouse, Police Officer Kenneth Douglas refused to provide his name and/or shield number to § 87(2)(b)	H . Unfounded

Synopsis

On September 28, 2007, at approximately 12:00 p.m., officers assigned to the 90th Precinct Street Narcotics Enforcement Unit (SNEU) team observed § 87(2)(b) and § 87(2)(b) engage in a hand-to-hand drug transaction on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn. Sgt. Antonio Hernandez and PO Michael Manaloris approached § 87(2)(b) and attempted to handcuff him. § 87(2)(b) pushed Sgt. Hernandez when he grabbed hold of him and Sgt. Hernandez punched § 87(2)(b) in his lower lip (Allegation A) while PO Manaloris grabbed hold of his arm (Allegation B). PO Winston Willabus also approached and tried to restrain § 87(2)(b) by holding onto his arms and legs (Allegation C). § 87(2)(b) continued to resist and PO Manaloris struck § 87(2)(b) several times in his legs with his asp (allegation D). § 87(2)(b) also alleged that Sgt. Hernandez struck him with his asp (Allegation E). Meanwhile other officers from the 90th Precinct SNEU team arrested § 87(2)(b) several blocks away without incident. PO Manaloris called for backup PO Kevin Hutchinson, PO Kenneth Douglas, and PO Dennis Ferrer, also of the 90th Precinct SNEU team, responded. With their assistance the officers handcuffed § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) were arrested for criminal possession of a controlled substance in the third degree and transported to the 90th Precinct. § 87(2)(b) was additionally charged with criminal sale of a controlled substance in the third degree, resisting arrest, and assault against a police officer. At the 90th Precinct, Sgt. Hernandez authorized the strip-search of § 87(2)(b) (Allegation F). Several members of § 87(2)(b)'s family went to the precinct, including § 87(2)(b) and § 87(2)(b). An ambulance was called for § 87(2)(b) who received an injury during his arrest. As § 87(2)(b) was being loaded into the ambulance, § 87(2)(b) asked PO Douglas where § 87(2)(b) was being taken. He did not respond. § 87(2)(b) responded § 87(2)(b) after which PO Douglas allegedly threatened to arrest her if she went to the hospital (Allegation G). § 87(2)(b) then requested his name and shield number; however, PO Douglas only provided his name (Allegation H). The ambulance then left to go to § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g) it is recommended that allegations A, B, C, and D be closed as exonerated. § 87(2)(g) it is recommended that allegation E be closed as unsubstantiated. § 87(2)(g)

It is recommended that allegation F be closed as exonerated. § 87(2)(g)

§ 87(2)(g) it is recommended that allegation G be closed as unsubstantiated. § 87(2)(g)

§ 87(2)(g) it is recommended that allegation H be closed as unfounded.

This case was investigated by Inv. Daniel Yost who also began the closing report. The closing report was completed by Supervising Investigator Delene Bromirski after Inv. Yost's promotion.

Summary of Complaint

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) Hispanic female. On September 25, 2007, at 12:10 PM, § 87(2)(b) called the IAB command center and filed a complaint (enc. 8A-E). On September 25, 2007, at 12:46 PM, § 87(2)(b) called the CCRB and filed a complaint (enc. 9A-D). At 10:37 PM, § 87(2)(b) called the IAB command center again and added to her original complaint. On December 14, 2007, § 87(2)(b) provided an official statement at the CCRB (enc. 14A-D) and viewed a photographic array on June 24, 2008 (enc. 15A-L). § 87(2)(b)

On September 25, 2007, at approximately 12:00 PM, § 87(2)(b) was informed by her friends that her son, § 87(2)(b) had been beaten up by six plainclothes officers. One of her friends, § 87(2)(b) told § 87(2)(b) that the officers had struck § 87(2)(b) with nightsticks on his head after he was handcuffed. At approximately 1:00 PM, § 87(2)(b) went to the 90th Precinct stationhouse where she was told to wait when she asked about § 87(2)(b). After approximately two hours, § 87(2)(b) again asked to see her son and whether they were taking him to the hospital. The desk officer again told her to wait. As she was waiting her other son, § 87(2)(b)

§ 87(2)(b) arrived. Some time later § 87(2)(b) observed several plainclothes officers half-carrying § 87(2)(b) out through a back door.

§ 87(2)(b) and § 87(2)(b) left the stationhouse and went around to the back parking lot. An ambulance was parked there and three plainclothes officers were helping § 87(2)(b) into it. Three additional plainclothes officers were standing nearby. § 87(2)(b) asked one of the officers, determined through investigation to be PO Kenneth Douglas, where the officers were taking § 87(2)(b). § 87(2)(b) described PO Douglas as a 5'5" stocky black male with a short, light-brown Afro. PO Douglas did not respond so § 87(2)(b) asked § 87(2)(b) where they were taking him and he told her that they were taking him to § 87(2)(b). In the intake tape, § 87(2)(b) could be heard saying, "mother fuckers are gonna fucking pay." PO Douglas told § 87(2)(b) that if she went to the hospital, he would arrest her for trespassing. § 87(2)(b) told him that § 87(2)(b) was her son and she wanted to know how badly he was injured. PO Douglas responded, "Well you have been warned." The officers placed § 87(2)(b) into the ambulance and it left.

§ 87(2)(b) went back inside the stationhouse and asked numerous officers if she was allowed to see her son but none of the officers answered her. As § 87(2)(b) was speaking to a uniformed officer at the front window, PO Douglas came out and told § 87(2)(b) that she "didn't need to show up with a crew." § 87(2)(b) then asked for both PO Douglas' name and badge number. PO Douglas told her, "My name is 'Douglas,'" but did not provide his badge number. § 87(2)(b)'s ex-girlfriend, § 87(2)(b) arrived at the stationhouse along with several other friends of § 87(2)(b)s. The officers refused to answer their questions. In her intake statement she alleged that "PO Hernandez" said that "he didn't give a shit what she had, to bring it on" and also gave her the middle finger. She did not repeat these allegations in any other statement. After approximately two hours, the uniformed officers told § 87(2)(b) that she needed to leave the stationhouse and she did so. § 87(2)(b) saw § 87(2)(b) at his arraignment at Brooklyn Central Booking. His face was swollen, his tooth was chipped, and his lip was cut open.

On June 24, 2008, § 87(2)(b) viewed a photographic array at the CCRB. The array contained the black and Hispanic members of the 90th Precinct SNEU team active on September 25, 2007, namely, Sgt. Antonio Hernandez, PO Winston Willabus, PO Kevin Hutchinson, PO Kenneth Douglas and PO Dennis Ferrer. The array also contained four fillers each of which was a black male officer with a mustache. § 87(2)(b) identified PO Kenneth Douglas as the officer that told her that if she went to the hospital she would be arrested. With the exception of PO Kevin Hutchinson, § 87(2)(b) identified the each member of the SNEU team as being present. § 87(2)(b) did not recognize any of the fillers.

§ 87(2)(b)

On September 25, 2007, § 87(2)(b) filed a complaint with the CCRB (enc. 8A-E), which was incorporated into this complaint. § 87(2)(b) made the following statement.

On September 25, 2007, § 87(2)(b) was walking with several family members in the vicinity of § 87(2)(b) and § 87(2)(b) when she saw multiple officers jumped on top of § 87(2)(b). A Hispanic officer repeatedly punched him in the face while a black officer beat him with an asp. The officers held him on the ground and continued to beat him after he was handcuffed. § 87(2)(b) accompanied § 87(2)(b)'s family to the 90th Precinct stationhouse where officers did not provide them with details regarding the incident. However, an officer provided them with the contact number for the CCRB.

§ 87(2)(b) provided an address and a phone number when she filed her complaint. On October 2, 2007, the undersigned investigator contacted the provided number and left a message. On October 4, 2007, § 87(2)(b) called back and stated that the number belonged to her and that she did not know § 87(2)(b) or know anything about the incident. A subsequent Lexis Nexis search failed to provide a phone number linked to § 87(2)(b) provided address. A Verizon subpoena prepared on December 7, 2008 also failed to provide a phone number. On October 2, 2007 and December 7, 2007, please call letters were mailed to § 87(2)(b) provided address. Neither letter enticed a response.

§ 87(2)(b)

On September 25, 2007, § 87(2)(b) called the IAB command center and filed a complaint (enc. 8A-E). § 87(2)(b) made the following statement.

On September 25, 2007, § 87(2)(b)'s friend, § 87(2)(b) was walking on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) when six plainclothes officers got out of unmarked Impalas and handcuffed him. The officers consisted of two white males, two black males and two Hispanic males. A "Mexican" male officer "beat on" § 87(2)(b) and a black male officer struck him with a baton after he was handcuffed. The other black officer struck him his fists. § 87(2)(b) stated that she filmed the entire incident on her cell phone. § 87(2)(b) was bleeding from his ears after the incident and the officers took him to § 87(2)(b) § 87(2)(b) went to the 90th Precinct to obtain all of the officers' identities but was unable to do so.

An individual who identified herself as § 87(2)(b) provided the same phone number to IAB that § 87(2)(b) provided to the CCRB. As determined above that number was linked to § 87(2)(b), who had no knowledge of the incident. § 87(2)(b) also provided an additional address. On June 3, 2008 and June 5, 2008, please call letters were mailed to that address. Neither letter enticed a response. On June 3, 2008 a search of COLES and Lexis Nexis failed to produce a phone number linked to that address.

Results of Investigation

Civilian Statements

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) Hispanic male standing § 87(2)(b) and weighing § 87(2)(b). He occasionally helps an individual named § 87(2)(b) § 87(2)(b) with odd jobs, § 87(2)(b). On September 25, 2007, § 87(2)(b) was interviewed at § 87(2)(b) by Det. Leslie Honore of IAB Group 54 (enc. 11A-H). On October 23, 2007, § 87(2)(b) provided an official statement at the CCRB (enc. 13A-D). In addition, § 87(2)(b) made statements to the medical staff at § 87(2)(b) on September 25, 2007 that were recorded in his medical records (enc. 10A). § 87(2)(g)

On September 25, 2007, at approximately 11:45 PM, § 87(2)(b) was walking north on § 87(2)(b) from § 87(2)(b) in Brooklyn. § 87(2)(b) was wearing a white shirt with red polka dots, dark-colored jeans and a Yankee hat. § 87(2)(b) was coming from Crown Chicken on § 87(2)(b). In his statement to IAB § 87(2)(b) stated that he was coming from the train. § 87(2)(b) was not certain if he stopped to talk to anyone after leaving Crown Chicken. § 87(2)(b) was going to his grandmother's house on § 87(2)(b). § 87(2)(b) was alone and there were not many people on the street. As he approached the intersection of § 87(2)(b) two officers, determined through investigation to be Sgt. Antonio Hernandez and PO Winston Willabus, approached him from behind. § 87(2)(b) described Sgt. Hernandez as a 6'0" white male with a large build in his 30's dressed in plainclothes. He described PO Willabus as a 5'8" husky black male in his 30's dressed in plainclothes. § 87(2)(b) did not see them get out of a vehicle. § 87(2)(b) believed that PO Willabus's last name was "Douglas" because he recognized him from previous encounters.

Sgt. Hernandez pushed § 87(2)(b) in the back and he hit the wall of a building. § 87(2)(b) thinking that he was being robbed, turned around and stated, "Get off of me!" § 87(2)(b) pushed Sgt. Hernandez and Sgt. Hernandez responded by punching him in the lower lip. § 87(2)(b) repeated, "Get off of me! Get off of me!" Sgt. Hernandez took out his asp and struck § 87(2)(b) repeatedly on his legs until § 87(2)(b) fell to the ground. § 87(2)(b) did not strike or swing at Sgt. Hernandez at any point. § 87(2)(b) stated, "Why are you hitting me?" as he lay on his stomach. PO Willabus held § 87(2)(b)'s legs.

At some point, additional officers arrived and held § 87(2)(b) down. Officers, whom § 87(2)(b) could not identify, repeatedly struck him on his body and face with asps. § 87(2)(b) heard an officer tell him that he was resisting arrest. § 87(2)(b) sustained a chipped tooth from the asp strikes. After some time, the officers handcuffed § 87(2)(b). After he was handcuffed they continued to strike him. § 87(2)(b) could not recall how many times he was struck or who struck him once he was handcuffed. A large crowd gathered and some individuals filmed the incident on their cell phones. People were yelling at the officers to stop beating § 87(2)(b). § 87(2)(b) then lost consciousness. § 87(2)(b) last recalls being placed in an ambulance at the scene.

The next thing § 87(2)(b) recalled was waking up at § 87(2)(b). § 87(2)(b) did not recall going to the 90th Precinct stationhouse. § 87(2)(b) had contusions on his head and experienced difficulty hearing over the next few days. § 87(2)(b) received stitches inside and outside of his mouth. PO Dennis Ferrer, whom § 87(2)(b) recognized from past encounters, and another officer, determined to be PO Kevin Hutchinson, were at the hospital with § 87(2)(b).

From § 87(2)(b) § 87(2)(b) was taken to the 90th Precinct stationhouse to be processed. § 87(2)(b) was charged with possession of narcotics and assaulting a police officer. § 87(2)(b) did not have any narcotics on him and did not know why he was charged. § 87(2)(b) vaguely recalled seeing his brother, § 87(2)(b) at the stationhouse from the holding cell.

During his interview with IAB, § 87(2)(b) viewed photographs of possible subject officers. § 87(2)(b) identified PO Kevin Hutchinson as being present during the incident. § 87(2)(b) also identified PO Dennis Ferrer as an officer that kicked and punched him. § 87(2)(b) also stated that he had had past encounters with both of these officers and knew them by name. § 87(2)(b) did not identify PO Winston Willabus, PO Michael Manaloris or PO Kenneth Douglas.

At § 87(2)(b) § 87(2)(b) stated that “cops beat him with a stick and kicking him” (sic). Photographs taken by IAB of § 87(2)(b) at § 87(2)(b) show a bruised and swollen left cheek and a lacerated lower lip (enc. 11H). His arrest photograph shows scratches on his forehead and near his lip (enc. 12A).

§ 87(2)(b)

§ 87(2)(b) § 87(2)(b) § 87(2)(b) is a § 87(2)(b) white male standing § 87(2)(b) and weighing § 87(2)(b). § 87(2)(b) is a § 87(2)(b). On September 26, 2007, § 87(2)(b) provided a statement to IAB (enc. 16A-F). On December 7, 2007, § 87(2)(b) provided a telephone statement to the CCRB (enc. 17A). On January 28, 2008, § 87(2)(b) provided an official statement at the CCRB (enc. 18A-C). § 87(2)(g)

On September 25, 2007, at approximately 12:00 PM, § 87(2)(b) § 87(2)(b) § 87(2)(b) met § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, within the confines of the 90th Precinct. § 87(2)(b) had contacted § 87(2)(b) to arrange a meeting to purchase narcotics. § 87(2)(b) got off the train and they met in a bodega on the corner of § 87(2)(b) and § 87(2)(b) where § 87(2)(b) handed § 87(2)(b) money in exchange for twenty bags of heroin and a bag of cocaine. § 87(2)(b) left the bodega and walked three blocks north on § 87(2)(b) where a black Crown Victoria pulled in front of him. Three officers got out of the vehicle and pushed him up against a chain link fence. They told § 87(2)(b) that they had seen him buy drugs off of a known drug dealer. The officers searched § 87(2)(b). § 87(2)(b) informed them that he had a needle in his pocket. The officers took the needle out and threw it over the fence onto the grass. The officers removed the heroin and cocaine from his pockets before placing § 87(2)(b) in the back of their vehicle. The officers then drove around the block to the corner of § 87(2)(b) and § 87(2)(b).

From the back seat of the vehicle § 87(2)(b) observed § 87(2)(b) lying face down on the northwest corner of the intersection. He was on the sidewalk with his head hanging over the curb. His head was pointed toward § 87(2)(b). Nothing was obstructing § 87(2)(b)'s view of § 87(2)(b). Blood was pouring out of § 87(2)(b)'s mouth. Three officers were on top of him. Two officers were holding § 87(2)(b)'s arms behind his back and yelling, “Stop resisting!” § 87(2)(b) was rocking back forth. § 87(2)(b) could not see his legs. § 87(2)(b) is fairly certain that a black male officer with hair, wearing a striped Polo shirt, had an expandable baton displayed. § 87(2)(b) did not see that officer strike § 87(2)(b) with it. Two officers, whom § 87(2)(b) could not describe, were striking him with their fists in the side of the body and in the side and back of the head. Those officers were also holding his arms. Those two officers continued to strike him until § 87(2)(b) stopped resisting. The physical interaction that § 87(2)(b) witnessed lasted four to five minutes. The officers that had arrested § 87(2)(b) got out of the car right away but did not become physically involved with § 87(2)(b). Rather, they helped control the crowd and gather narcotics and money. § 87(2)(b) did not, at any point, attempt to strike any of the officers. No force was used after § 87(2)(b) was handcuffed. The officers referred to § 87(2)(b) as “§ 87(2)(b).”

In his statement to IAB, § 87(2)(b) stated that § 87(2)(b) repeatedly tried to stand up and that the officers repeatedly told him to “stop fighting us” and “Don’t swallow it.” § 87(2)(b) did not see the officers handcuff § 87(2)(b).

There was heroin, cocaine and money all over the street and sidewalk. There was a crowd of approximately 20 people gathered. In particular, a Hasidic man was trying to speak to the officers and one of them told him to stand back. The officers picked § 87(2)(b) up and placed him in a separate vehicle. The officers that had arrested § 87(2)(b) got back into their car. One had a fishing hat filled with glassine bags of heroin. An officer stated, “This could be good for you kid. This is the most heroin I’ve ever gotten off the street.”

The officers then took § 87(2)(b) back to the 90th Precinct stationhouse, strip-searched him and processed him. § 87(2)(b) was placed in the same cell as § 87(2)(b). A lieutenant would not allow the officers to remove § 87(2)(b)'s handcuffs. § 87(2)(b) had urinated on himself during the incident. § 87(2)(b) had a laceration on

his cheek and a swollen face. § 87(2)(b) stated that he could not feel his arms. The officers then took § 87(2)(b) to the hospital. A few hours later, § 87(2)(b) returned. § 87(2)(b) explained he had nothing to do with § 87(2)(b)'s arrest. § 87(2)(b) told § 87(2)(b) that he thought he was getting mugged by "three or four black guys" and that they did not identify themselves as officers.

During his interview with IAB, § 87(2)(b) viewed photographs of possible subject officers. § 87(2)(b) identified PO Michael Manaloris and PO Kevin Hutchinson as being at the scene of § 87(2)(b)'s arrest when he arrived with his arresting officers.

§ 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) Hispanic male standing § 87(2)(b) and weighing § 87(2)(b). On October 23, 2007, § 87(2)(b) provided an official statement at the CCRB (enc. 19A-D).

On September 25, 2007, at approximately 12:00 PM, § 87(2)(b) received a phone call from his mother, § 87(2)(b) stating that his brother, § 87(2)(b) had been arrested. § 87(2)(b) agreed to meet his mother at the 90th Precinct stationhouse. When he arrived, § 87(2)(b) was inside speaking with the desk officer. § 87(2)(b) could see § 87(2)(b) through the window leading to the holding cells. His shirt was bloody and his mouth was cut open. § 87(2)(b) told the desk officer that she wanted the badge numbers of the officers that made the arrest and that she wanted to see § 87(2)(b). The officers behind the desk pulled down a blind, which separated the desk from the rest of the stationhouse.

At that point, § 87(2)(b) noticed four plainclothes officers taking § 87(2)(b) out through a back door. § 87(2)(b) and his mother went around the outside of the stationhouse to where the four officers were bringing § 87(2)(b) outside. § 87(2)(b) was having a hard time walking and could not get into the ambulance, which was parked outside, on his own. One officer, whom § 87(2)(b) knew from the neighborhood as "Dennis," determined to be PO Dennis Ferrer, helped § 87(2)(b) walk. Also present was a tall black officer wearing a blue jersey, a dark-skinned (black or Hispanic) male with curly hair wearing a beige and white button down shirt, and a 6'2" white male with a large build.

Upon seeing § 87(2)(b)'s condition, § 87(2)(b) asked the officers what hospital they were going to. The dark-skinned black or Hispanic male told § 87(2)(b) that if she went to the hospital she would be arrested. § 87(2)(b) asked him why and he told her that he did not want her at the hospital. § 87(2)(b) asked the officer for his name and he told her it was "Douglas." This verbal interaction took place while § 87(2)(b) was on the phone with IAB or the CCRB. § 87(2)(b) did not speak to the officers and they did not speak to him. The officers left with the ambulance and § 87(2)(b) followed them to § 87(2)(b). § 87(2)(b) went back to § 87(2)(b) to speak with people that had witnessed the incident.

Attempts to Contact Additional Civilian Witnesses

§ 87(2)(b) provided an address for § 87(2)(b). On January 14, 2008 and January 23, 2008, please call letters were mailed to this address. Neither enticed a response. On January 14, 2008, a Lexis Nexis search produced three possible phone numbers linked to the address provided for § 87(2)(b). Subsequent calls to each number produced negative results.

Officer Statements

Police Officer Winston Willabus

§ 87(2)(b) *Arrest Paperwork (enc. 20E-H)*

On September 25, 2007, at 11:45 AM, at the northwest corner of § 87(2)(b) and § 87(2)(b) PO Winston Willabus observed § 87(2)(b) engage in a hand to hand exchange of a quantity of narcotics for receipt of a quantity of US currency from an apprehended other. Upon effectuating a lawful arrest, at the southeast corner of § 87(2)(b) and § 87(2)(b) § 87(2)(b) resisted arrest by flailing his arms, throwing himself to the ground and holding his arms under his body. Physical force was used to restrain, control and remove § 87(2)(b). § 87(2)(b) was charged § 87(2)(b).

§ 87(2)(b) Arrest Paperwork (20A-D)

On September 25, 2007, at 11:45 AM, at the northwest corner of § 87(2)(b) and § 87(2)(b) PO Winston Willabus observed § 87(2)(b) engage in a hand to hand exchange of US currency for receipt of a quantity of narcotics with apprehended other. No force was used to effectuate § 87(2)(b)'s arrest. § 87(2)(b) was charged § 87(2)(b)

Property Vouchers (enc. 21A-B)

On September 25, 2007, PO Winston Willabus vouchered 261 glassine envelopes of heroin stamped "Live Free or Die Hard." A field test had been performed on one of them. PO Willabus also vouchered 32 clear Ziploc bags of cocaine and 6,390 dollars of US currency as arrest evidence incident to § 87(2)(b)'s arrest.

CCRB Statement

On January 3, 2008, PO Winston Willabus was interviewed at the CCRB (enc. 23A-C). PO Willabus is a § 87(2)(b)-old black male standing § 87(2)(b) and weighing § 87(2)(b). On September 25, 2007, PO Willabus was assigned to SNEU from 9:30 AM until 6:05 PM with Sgt. Antonio Hernandez and PO Michael Manaloris. They were dressed in plainclothes and assigned to an unmarked black Impala. According to PO Willabus's memo book (enc. 22A-D), at 11:50 AM, he made an arrest of § 87(2)(b) (DOB § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b). At 11:55 AM, he made an arrest of § 87(2)(b) (DOB § 87(2)(b) § 87(2)(b). § 87(2)(b) was transported to the 90th Precinct stationhouse via school van number 5343. At the stationhouse, § 87(2)(b) was awaiting arrival of EMS for injuries suffered while resisting. At § 87(2)(b), § 87(2)(b) was transferred to § 87(2)(b) by FDNY EMS. Escorting him was PO Hutchinson, PO Manaloris and PO Ferrer, followed by PO Douglas and PO Willabus. At 2:00 PM, PO Willabus and PO Douglas resumed patrol and were en route to 90th Precinct stationhouse. At 2:50 PM, they arrived at the stationhouse for arrest processing.

On September 25, 2007, at approximately 11:50 AM, PO Willabus was in an unmarked vehicle with Sgt. Antonio Hernandez and PO Michael Manaloris. They were parked facing eastbound on § 87(2)(b) at the corner of § 87(2)(b) in Brooklyn. They were making their rounds to see which sets (groups of drug dealers) were working on that day. They were parked at a stop light when they observed an individual, later identified as § 87(2)(b) waiting on the northwest corner of the intersection. Because it is a narcotics prone location, they decided to watch him to see what he was going to do. Approximately five to ten minutes later, § 87(2)(b) who is a known drug dealer, exited the subway station and approached § 87(2)(b). They stepped into the doorway of a bodega. Inside the doorway, § 87(2)(b) handed § 87(2)(b) several glassine envelopes and § 87(2)(b) handed § 87(2)(b) a quantity of US currency. § 87(2)(b) then left the bodega and walked north on § 87(2)(b). Ten to fifteen seconds after that § 87(2)(b) left the bodega walking in the same direction.

At that point, PO Willabus placed § 87(2)(b)'s description over the radio for the second team, which consisted of PO Dennis Ferrer, PO Kevin Hutchinson, and PO Kenneth Douglas. He, Sgt. Hernandez, and PO Manaloris decided to approach § 87(2)(b). As they turned onto § 87(2)(b) they got stuck in traffic. Sgt. Hernandez and PO Manaloris got out of the vehicle and approached § 87(2)(b) on foot. PO Willabus could not hear what was said but observed § 87(2)(b) turn around as the officers got close to him. Sgt. Hernandez grabbed one arm and § 87(2)(b) tried to pull away. PO Manaloris grabbed the other hand. The officers attempted to place him against a parked car. PO Willabus worked his way around traffic and approached them. PO Willabus never lost sight of § 87(2)(b).

As PO Willabus approached, Sgt. Hernandez and PO Manaloris each had a hold of one of § 87(2)(b)'s arms. § 87(2)(b) was resisting their attempts to handcuff him. § 87(2)(b) was trying to turn away from the officers. PO Willabus approached and grabbed the same arm that Sgt. Hernandez was holding. In some manner, the four of them fell to the ground. § 87(2)(b) fell onto his stomach. PO Willabus did not see § 87(2)(b)'s face touch the ground. § 87(2)(b) with one hand, was trying to reach into his pants. With the other he was resisting the officers' attempts to handcuff him. On the ground, § 87(2)(b) tried to bite PO Willabus's hand. While struggling on the ground, the second team arrived. Those officers attempted to hold § 87(2)(b)'s legs and arms down. PO Willabus did not have an asp with him. Sgt. Hernandez struck § 87(2)(b) with his asp on the arm in an attempt to loosen it. In the process he struck PO Willabus's knee. Sgt. Hernandez struck § 87(2)(b) more than once with his

asp but PO Willabus did not know how many times. § 87(2)(b) did not respond to the asp. PO Willabus struck the other shoulder with his fist three or four times. PO Willabus did not see any other officer strike § 87(2)(b). None of the officers used any pepper spray. PO Willabus did not see anyone strike § 87(2)(b)'s face or head. Narcotics were spilling onto the ground during the struggle.

Eventually the officers were able to handcuff § 87(2)(b). Two sets of handcuffs were used. PO Willabus handcuffed one arm and another officer handcuffed the other. Sgt. Hernandez sustained a contusion to his knee. PO Willabus saw blood on § 87(2)(b)'s face at the scene but did not know where it was coming from specifically. No officer struck § 87(2)(b) after he was handcuffed. The entire struggle lasted no more than five minutes. Toward the end a crowd of approximately thirty people formed. The officers did not have any interaction with the crowd. When they were placing § 87(2)(b) into the van a younger male friend or relative approached and the officers told him he would have to go to the stationhouse. § 87(2)(b) was then transported to the stationhouse. § 87(2)(b) was transported to the stationhouse in the other team's vehicle.

The entire SNEU team then returned to the stationhouse. PO Willabus heard that a crowd of § 87(2)(b)'s friends and family were at the stationhouse but did not have any interaction with any of them. PO Willabus was present when § 87(2)(b) was placed into the ambulance, which responded to the back of the stationhouse. There were approximately three civilians present near the gate when § 87(2)(b) was being placed into the ambulance. They were trying to get § 87(2)(b)'s attention but the officers were not paying any attention to them. PO Willabus did not observe any officer speak with any of those individuals. § 87(2)(b) was kept at the stationhouse for approximately 45 minutes before being taken to § 87(2)(b). PO Willabus did not hear any officer tell any of the civilians that they would be arrested if they went to the hospital or curse at any of them. None of the civilians requested any of the officers' names or shield numbers. PO Willabus escorted the ambulance to the hospital but then came straight back to the stationhouse. PO Willabus did not see any of the officers make any obscene gestures at any of the civilians. PO Willabus was shown the photographs of § 87(2)(b)'s injuries but did not recall seeing any of those injuries at the scene. PO Willabus did not see how § 87(2)(b) sustained any of those injuries.

Sergeant Antonio Hernandez

On January 8, 2008, Sgt. Antonio Hernandez was interviewed at the CCRB (enc. 25A-C). Sgt. Hernandez is a § 87(2)(b)-old Hispanic male standing § 87(2)(b) and weighing § 87(2)(b). He is currently assigned to the Internal Affairs Bureau and has a 7-year tenure. At the time of the incident he was assigned to the 90th Precinct. On September 25, 2007, Sgt. Hernandez was the SNEU supervisor from 9:00 AM until 2:57 PM. He was working with PO Winston Willabus and PO Michael Manaloris. They were dressed in plainclothes and assigned to an unmarked vehicle. Sgt. Hernandez did not have any entries in his memo book regarding the incident (enc. 24A-B).

On September 25, 2007, at approximately 12:00 PM, Sgt. Antonio Hernandez was in an unmarked vehicle parked on the southwest corner of § 87(2)(b) and § 87(2)(b) facing east on § 87(2)(b). The officers observed § 87(2)(b) approach § 87(2)(b) who was standing on the northwest corner. The two then entered the doorway of a grocery store on the same corner. Inside the doorway, § 87(2)(b) handed § 87(2)(b) a quantity of US currency. In return § 87(2)(b) handed § 87(2)(b) several white envelopes. The officers recognized § 87(2)(b) as a known drug dealer and the area is a known drug-prone location. The door never closed and they did not walk all the way inside the deli. After the transaction, § 87(2)(b) walked north on § 87(2)(b). Sgt. Hernandez put over a description of § 87(2)(b) and the direction in which he was walking to the other SNEU team, which consisted of PO Dennis Ferrer, PO Kenneth Douglas and PO Kevin Hutchinson. They arrested § 87(2)(b) on § 87(2)(b) near § 87(2)(b). Several moments later, § 87(2)(b) walked out of the store and north on § 87(2)(b) as well.

Sgt. Hernandez and PO Manaloris got out and followed § 87(2)(b) on foot. They caught up to him near § 87(2)(b) and § 87(2)(b). They approached him and identified themselves as police by saying, "Police! Put your hands on the wall. Don't move." The officers had their badges displayed on chains hanging outside their clothes. § 87(2)(b) turned around, took a confrontational posture and stated, "Why am I getting arrested?" Specifically, § 87(2)(b) raised his hands up as if to protect himself. The officers again commanded § 87(2)(b) to turn around and place his hands on the wall. § 87(2)(b) then began walking away toward § 87(2)(b) but the officers grabbed him before he could get past them.

Sgt. Hernandez grabbed § 87(2)(b)'s arm and shoulder. PO Manaloris grabbed his other arm. § 87(2)(b) reacted by holding his arms together and trying to get away. PO Manaloris then took out his baton and struck § 87(2)(b) in the legs and shoulder area. PO Manaloris struck him two or three times in each place. At one point when PO Manaloris swung at § 87(2)(b) he grabbed the asp and tried to take it from him. Sgt. Hernandez

had to help PO Manaloris regain control of his asp. At the same time the officers were instructing § 87(2)(b) to stop resisting. § 87(2)(b) continued to resist. At that point, PO Willabus arrived and helped the officers. All three officers then threw § 87(2)(b) off balance and brought him to the ground. § 87(2)(b) landed on the ground face first.

Once on the ground, § 87(2)(b) started reaching into his pants and pulling out glassine envelopes of heroin. § 87(2)(b) was trying to put them into his mouth. The officers grabbed his hands to prevent him from doing that and § 87(2)(b) tried to bite one of them. Sgt. Hernandez was pulling § 87(2)(b)'s arms in order to bring them behind his back. Sgt. Hernandez punched § 87(2)(b)'s shoulder "a couple" of times. Sgt. Hernandez did not recall if PO Manaloris used his asp while § 87(2)(b) was on the ground. PO Willabus was pulling on § 87(2)(b)'s arms and putting his weight on top of him. During the struggle on the ground, the second team arrived and those three officers helped subdue § 87(2)(b). Sgt. Hernandez did not recall if any of those three officers struck § 87(2)(b) but they were using different techniques to bring § 87(2)(b)'s arms behind his back. None of the officers used pepper spray. No other officer, aside from PO Manaloris, used his asp. After a total of five minutes, the officers were able to handcuff § 87(2)(b). § 87(2)(b) was never on his back. He was face down the entire time. Sgt. Hernandez did not observe any officer strike § 87(2)(b) in his face. During the struggle § 87(2)(b) was kicking at the officers but did not have a chance to swing at the officers because the officers were holding his arms. Sgt. Hernandez did not see § 87(2)(b) make contact with any of the officers.

During the struggle Sgt. Hernandez and PO Willabus sustained bruised knees but he did not recall how they were sustained. When the officers picked § 87(2)(b) up off the ground he had blood on his shirt and face. The blood was smeared so Sgt. Hernandez could not tell the extent of the injury or where it was. When shown the photographs of § 87(2)(b)'s injuries, Sgt. Hernandez could not explain specifically how the injuries were sustained, although officers were holding § 87(2)(b)'s face down against the pavement during the struggle. Sgt. Hernandez stated that this was a possible way in which he could have sustained the injury.

After observing the blood on § 87(2)(b) Sgt. Hernandez called for an ambulance. The ambulance took too long and a crowd started to form so the officers removed § 87(2)(b) to the 90th Precinct stationhouse and re-directed EMS there. At the stationhouse, the officers had § 87(2)(b) waiting by the desk. Friends or family of § 87(2)(b) were inside the stationhouse. Sgt. Hernandez attempted to speak to them but they were cursing and "being irate." Sgt. Hernandez recalled speaking to § 87(2)(b) at the stationhouse and recognized her from her photograph. § 87(2)(b) was screaming near the window inside the stationhouse that she was going to call IAB. Sgt. Hernandez came out and tried to explain what had happened. § 87(2)(b) would not listen so Sgt. Hernandez started walking away. § 87(2)(b) asked him for his name and shield and he told her. § 87(2)(b) would not calm down. Sgt. Hernandez pointed out the sign to IAB and CCRB and walked away. Sgt. Hernandez did not see § 87(2)(b) speak to any other officer from the SNEU team.

Because a crowd had formed at the stationhouse, Sgt. Hernandez instructed his officers to have the ambulance respond to the back and to escort § 87(2)(b) to the hospital. The escort was used in case any of the family members went to the hospital in order to prevent a possible escape. The officers walked § 87(2)(b) outside. Sgt. Hernandez did not go outside to load § 87(2)(b) into the ambulance. Sgt. Hernandez did not curse at § 87(2)(b). Sgt. Hernandez did not observe any officer tell § 87(2)(b) that she would be arrested if she went to the hospital. There were approximately twenty civilians present at the stationhouse in regard to § 87(2)(b). Sgt. Hernandez did not observe any officer raise their middle finger to § 87(2)(b). § 87(2)(b) did not ask any other officer for their name or shield number.

Police Officer Michael Manaloris

On March 4, 2008, PO Michael Manaloris was interviewed at the CCRB (enc. 27A-B). PO Manaloris is a § 87(2)(b)-old white male standing § 87(2)(b) and weighing § 87(2)(b). He is currently assigned to the 90th Precinct and has a 6-year tenure. On September 25, 2007, PO Manaloris was assigned to SNEU with Sgt. Antonio Hernandez and PO Winston Willabus from 9:30 AM until 6:05 PM. They were dressed in plainclothes and assigned to an unmarked vehicle. PO Manaloris stated in his memo book (enc. 26A-B) that at 11:55 AM, there was one under arrest at § 87(2)(b) and § 87(2)(b). EMS was notified. At 12:00 PM he was present at the 90th Precinct stationhouse.

On September 25, 2007, PO Michael Manaloris, Sgt. Antonio Hernandez and PO Winston Willabus were parked at the intersection of § 87(2)(b) and § 87(2)(b) in Brooklyn, within the confines of the 90th Precinct. PO Willabus was driving, Sgt. Hernandez was in the front passenger seat and PO Manaloris was in the back passenger seat. At approximately 11:55 AM, Sgt. Hernandez and PO Willabus informed PO Manaloris that they had observed

§ 87(2)(b) engage in a hand-to-hand drug transaction with a white male, later determined to be § 87(2)(b). When PO Manaloris looked in that direction he saw § 87(2)(b) walking north on § 87(2)(b) away from where they were parked.

PO Manaloris and Sgt. Hernandez got out of their vehicle and followed § 87(2)(b). PO Willabus remained in the vehicle. They caught up to him on § 87(2)(b) at § 87(2)(b). Both PO Manaloris and Sgt. Hernandez had their shields out and told § 87(2)(b) “Police! Don’t move!” § 87(2)(b) turned around and attempted to run past the officers back toward § 87(2)(b). In the process he pushed PO Manaloris. § 87(2)(b) knows the officers from past encounters. The officers have “been dealing with him for years.” When § 87(2)(b) attempted to “run through” PO Manaloris, the officers grabbed him and he was unable to get away. PO Manaloris grabbed his arm. Sgt. Hernandez was on his other side. PO Manaloris did not know what Sgt. Hernandez’s specific actions were. § 87(2)(b) started fighting with the officers. He was shoving and striking PO Manaloris with his forearm. PO Manaloris took one blow to the chest. PO Manaloris repeatedly told § 87(2)(b) to stop resisting. Within the first few seconds, PO Manaloris took out his asp and struck § 87(2)(b) an unknown amount of times both below and above his knees. § 87(2)(b) remained on his feet and at one point grabbed the asp and started pulling PO Manaloris. PO Manaloris may have struck him with his fist in order to get the asp away but did not recall where he struck him.

At some point during the struggle, PO Manaloris called over the radio for the other team to respond. This team consisted of PO Kenneth Douglas and two other officers. PO Manaloris did not recall at what point, PO Willabus arrived. At some point after the other officers arrived, the struggle went to the ground. Specifically, PO Manaloris lost his balance, fell and rolled. PO Manaloris did not recall how § 87(2)(b) fell to the ground or what part of his body struck the ground first. The responding officers took part in the struggle but PO Manaloris could not recall what their specific actions were. On the ground, § 87(2)(b) was trying to push the officers off of him. PO Manaloris grabbed one arm and attempted to place a handcuff on it. At some point PO Manaloris lost his asp and did not use it once the struggle went to the ground. Aside from grabbing § 87(2)(b)’s arm, PO Manaloris did not recall if he used any other force. Throughout the struggle, § 87(2)(b) was pulling bags of drugs out of his pants and putting them both in his mouth and in a nearby street drain.

PO Manaloris sustained several scrapes on his arms but did not report it. § 87(2)(b) sustained a laceration to his lip. He may have sustained this injury during the fall to the ground. PO Manaloris did not know how long the struggle lasted. PO Manaloris handcuffed one hand and another officer handcuffed the other. A marked van responded and the officers placed § 87(2)(b) inside. The van transported § 87(2)(b) back to the stationhouse and PO Manaloris also returned to the stationhouse.

At the stationhouse, EMS responded to the back but PO Manaloris did not know why it did so. PO Manaloris did not recall if there were any friends or relatives of § 87(2)(b)’s present inside the stationhouse. PO Manaloris was present when § 87(2)(b) was placed into the ambulance. There were no civilians present when this was done. PO Manaloris did not hear any civilian request any officer’s name or shield number. PO Manaloris rode in the ambulance with § 87(2)(b) to § 87(2)(b). At the hospital he remained there for some time and then returned to the stationhouse.

Police Officer Kevin Hutchinson

On March 20, 2008, PO Kevin Hutchinson was interviewed at the CCRB (enc. 29A-B). PO Hutchinson is a § 87(2)(b)-old black male standing § 87(2)(b) and weighing § 87(2)(b). At the time of the incident, he was assigned to the 90th Precinct and had a 5-year tenure. On September 25, 2007, PO Hutchinson was assigned to SNEU from 9:30 AM until 6:05 PM with PO Dennis Ferrer and PO Kenneth Douglas. They were dressed in plainclothes and assigned to an unmarked blue Impala. PO Hutchinson stated in his memo book (enc. 28A-C) that at 11:50 AM there was one under arrest at § 87(2)(b) and § 87(2)(b). At 11:55 AM, he arrived at § 87(2)(b) and § 87(2)(b) regarding an 85 (request for additional units). At 12:00 PM, he arrived at the 90th Precinct stationhouse. At 12:30 PM, he was assigned to § 87(2)(b). At 4:30 PM, he arrived at the 90th Precinct stationhouse.

On September 25, 2007, PO Kevin Hutchinson, PO Dennis Ferrer and PO Kenneth Douglas were driving around looking to see which sets, or drug dealers, were working that day. PO Hutchinson was in the back seat. At approximately 11:45 AM, the other SNEU team, which consisted of Sgt. Antonio Hernandez, PO Michael Manaloris and PO Winston Willabus, came over the radio stating that they had observed a hand-to-hand drug transaction and put over a description of a white male. The officers stated that the buyer was walking north on § 87(2)(b) away from § 87(2)(b).

PO Hutchinson and his partners responded to the vicinity and stopped the buyer, determined to be § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b). The officers searched him, recovered two decks of heroin and placed him under arrest. The officers placed § 87(2)(b) in their vehicle and headed toward the 90th Precinct stationhouse. After three or four blocks, they heard the other SNEU team request assistance at § 87(2)(b) and § 87(2)(b).

PO Hutchinson and his partners turned around and drove to the location. As they arrived at § 87(2)(b) and § 87(2)(b), PO Hutchinson observed the other SNEU team wrestling with § 87(2)(b). § 87(2)(b) was on the ground lying face down in the street refusing to give the officers his arms. Specifically, § 87(2)(b) was holding his arms close to his body and rocking his upper body back and forth. PO Willabus, PO Manaloris, and Sgt. Hernandez were all pulling on his arms in an attempt to bring them behind his back. PO Ferrer approached the struggle and also pulled on § 87(2)(b)'s arms. PO Hutchinson did not know what PO Douglas did upon arriving. PO Hutchinson did not see any officer strike § 87(2)(b) with their fists or asps. PO Hutchinson did not observe § 87(2)(b)'s face strike the concrete.

PO Hutchinson stayed by the vehicle at first. After one or two minutes, when he saw that the other officers were having trouble handcuffing § 87(2)(b), he approached and assisted them. As he approached, PO Hutchinson did not see any injuries on § 87(2)(b). None of the officers had an asp in their hand but there was an asp lying on the ground. PO Hutchinson grabbed § 87(2)(b)'s left arm and pulled it. Eventually he was able to pull it behind his back. By this time the officers were able to get his other arm behind his back and together they handcuffed him. No officer, including PO Hutchinson, at any point struck § 87(2)(b). During the struggle, PO Hutchinson noticed narcotics lying on the ground.

After the struggle, PO Hutchinson observed that § 87(2)(b) was bleeding from somewhere on his face and there was blood on the ground. PO Hutchinson did not know how § 87(2)(b) sustained that injury. After § 87(2)(b) was handcuffed no force was used against him. The officers placed § 87(2)(b) into a vehicle and transported him to the 90th Precinct stationhouse. PO Hutchinson rode back to the stationhouse in his vehicle.

At the stationhouse, the officers parked in the back parking lot. PO Hutchinson walked § 87(2)(b) inside to the front desk. An unidentified officer walked § 87(2)(b) into the stationhouse and to the front desk. PO Hutchinson stayed with the prisoners by the front desk as they were logged into the command log. From the front desk, § 87(2)(b) was taken to the holding cells. An ambulance was called for § 87(2)(b). There were several people present at the front window by the front desk on behalf of § 87(2)(b). PO Hutchinson did not have any interaction with any of these individuals inside the stationhouse. PO Hutchinson did not hear any of these individuals request any of the officers' names or shield numbers.

Shortly thereafter the ambulance responded to the back of the stationhouse. Typically, ambulances respond to the front of the stationhouse. In this case, it responded to the back of the stationhouse because of "all the commotion" in the front. There were several family members in front and inside of the stationhouse. PO Hutchinson, PO Willabus and PO Ferrer walked § 87(2)(b) out the back door to the ambulance waiting in the parking lot. There were several individuals outside the back gate of the parking lot. PO Hutchinson was not paying attention to what these individuals were saying. PO Hutchinson did not hear any of these individuals ask the officers where they were taking § 87(2)(b). PO Hutchinson did not hear any officer tell any of the civilians they would be arrested for going to the hospital. PO Hutchinson did not hear any of the individuals ask the officers for their names or shield numbers. None of the officers cursed or made obscene gestures at any of the civilians.

PO Hutchinson went to the hospital and guarded § 87(2)(b) until 4:30 PM. When shown photographs of § 87(2)(b) and § 87(2)(b), PO Hutchinson stated that he did not recall seeing either of them during the incident.

Police Officer Kenneth Douglas

On April 3, 2008, PO Kenneth Douglas was interviewed at the CCRB (enc. 31A-B). PO Douglas is § 87(2)(b) year-old black male standing § 87(2)(b) and weighing § 87(2)(b). At the time of the incident PO Douglas was assigned to the 90th Precinct and had a 13-year tenure. On September 25, 2007, PO Douglas was assigned to 90th Precinct SNEU with PO Dennis Ferrer and PO Kevin Hutchinson from 9:30 AM until 6:05 PM. He was dressed in plainclothes and assigned to an unmarked black vehicle. PO Douglas stated in his memo book (enc. 30-B) that at 11:55 AM, he had one under at § 87(2)(b) and § 87(2)(b) by PO Willabus. At 12:00 PM, he arrived at the stationhouse.

On September 25, 2007, at approximately 11:50 AM, PO Kenneth Douglas was inside his unmarked vehicle with PO Kevin Hutchinson and PO Dennis Ferrer when he received a radio transmission from the other

SNEU team stating that they had observed a hand-to-hand drug transaction. The transmission also provided a description of the buyer and his location. PO Douglas did not recall what the provided location or description was. PO Douglas did not recall where he was when he received the first transmission. The officers responded to the provided location and arrested the buyer, determined to be § 87(2)(b). The officers placed § 87(2)(b) into their vehicle and began driving back to the 90th Precinct stationhouse. As they did so, the other SNEU team transmitted a 10-85 (request for additional units) and provided their location, which was § 87(2)(b) and § 87(2)(b). PO Douglas did not recall where they were when they received the second transmission. PO Douglas, PO Ferrer and PO Hutchinson responded immediately to § 87(2)(b) and § 87(2)(b).

As they arrived, PO Douglas observed PO Michael Manaloris, PO Winston Willabus and Sgt. Antonio Hernandez struggling with a male, determined to be § 87(2)(b) on the ground. PO Douglas immediately got out of his vehicle and approached. PO Ferrer and PO Hutchinson stayed with the vehicle to guard § 87(2)(b). § 87(2)(b) had both of his arms tucked underneath his chest and was lying face down. § 87(2)(b) was rocking back and forth and kicking his feet. § 87(2)(b) was throwing narcotics to the side. All three officers were pulling on § 87(2)(b)'s arms attempting to pull them behind his back. Sgt. Hernandez was giving § 87(2)(b) verbal commands to stop resisting. None of the officers struck § 87(2)(b) at any point. PO Douglas did not see any officer with their asp drawn. As he approached, PO Douglas did not see any injuries on § 87(2)(b). PO Douglas grabbed one of § 87(2)(b)'s hands and pulled it back. After “a couple minutes” the officers were able to handcuff him. Aside from pulling his arm, PO Douglas did not use any other force. A crowd formed during the struggle and the people were verbally belligerent. They were yelling at the officers to let § 87(2)(b) go. The officers then picked § 87(2)(b) up and placed him in a marked van, which transported him back to the 90th Precinct stationhouse. PO Douglas, PO Ferrer and PO Hutchinson then drove back to the stationhouse. No officer used pepper spray during the struggle.

At the stationhouse PO Douglas, PO Hutchinson and PO Ferrer parked in the back parking lot. PO Douglas observed that § 87(2)(b) had an abrasion on his forehead. PO Douglas did not know how this injury was sustained. PO Douglas did not recall who walked the prisoners inside. PO Douglas walked inside and helped to search the prisoners in front of the desk. He recovered more narcotics and currency from § 87(2)(b). PO Douglas vouchered the drugs and currency. After being searched, PO Willabus took § 87(2)(b) to the holding cell. PO Douglas did not have any interaction with any civilian inside the stationhouse. Upon arriving at the stationhouse, PO Willabus called for an ambulance. PO Douglas did not recall when the ambulance responded. He was not present when it responded but was “doing other things.” PO Douglas did not assist in helping § 87(2)(b) into the ambulance. At no point did PO Douglas see any civilian at the stationhouse on behalf of § 87(2)(b).

PO Willabus and PO Douglas then walked outside to the back parking lot and got inside an unmarked vehicle. They then followed the ambulance to § 87(2)(b). When they walked outside, § 87(2)(b) had already been placed inside the ambulance. As they were leaving, PO Douglas did not see any civilians outside. PO Douglas and PO Willabus only stayed at the hospital for several minutes. They only escorted the ambulance to the hospital. PO Douglas stated that “just about every prisoner” is escorted by an additional unit to the hospital. PO Douglas did not recall which officer stayed at the hospital to guard § 87(2)(b).

Police Officer Dennis Ferrer

On March 18, 2008, PO Dennis Ferrer was interviewed at the CCRB (enc. 33A-B). PO Ferrer is § 87(2)(b) year-old Hispanic male standing § 87(2)(b) tall and weighing § 87(2)(b). At the time of the incident he was assigned to the 90th Precinct and had a 9-year tenure. On September 25, 2007, PO Ferrer was assigned to SNEU with PO Kenneth Douglas and PO Kevin Hutchinson from 7:15 AM until 3:11 PM. He was dressed in plainclothes and assigned to a black unmarked vehicle. PO Ferrer had no relevant entries regarding the incident (enc. 32A).

On September 25, 2007, at approximately 12:00 PM, PO Dennis Ferrer, PO Kevin Hutchinson and PO Kenneth Douglas were canvassing the vicinity of § 87(2)(b) and Rodney Street in Brooklyn, within the confines of the 90th Precinct, looking for known drug locations where they could establish an observation post. PO Ferrer was driving. While doing so, they received a radio transmission from Sgt. Antonio Hernandez stating that he had observed a drug sale at the corner of § 87(2)(b) and § 87(2)(b). Sgt. Hernandez was working with PO Michael Manaloris and PO Winston Willabus. Sgt. Hernandez described the buyer, determined to be § 87(2)(b), § 87(2)(b), § 87(2)(b) as a white male wearing dark clothing. Sgt. Hernandez stated that § 87(2)(b) was walking north on § 87(2)(b) away from § 87(2)(b).

PO Ferrer, along with PO Hutchinson and PO Douglas, responded to the vicinity and observed § 87(2)(b) at the corner of § 87(2)(b) and § 87(2)(b). The officers recovered two decks of heroin after § 87(2)(b).

told them where the narcotics were located. The officers handcuffed him, placed him in the back of their vehicle and started driving toward the 90th Precinct stationhouse via § 87(2)(b). As they reached the intersection of § 87(2)(b) and § 87(2)(b), a transmission came over their radio from the other SNEU team that sounded like an officer in distress at § 87(2)(b) and § 87(2)(b). PO Ferrer, along with PO Hutchinson and PO Douglas, responded immediately to the location.

As they approached the location, PO Ferrer observed the other SNEU team struggling with § 87(2)(b). § 87(2)(b) was on his stomach in the street holding his arms close to his body. He had a cut on his forehead that was bleeding. There was whitish powder spread around his mouth. The substance was narcotics but PO Ferrer did not observe § 87(2)(b) putting narcotics in his mouth. Sgt. Hernandez and PO Manaloris were each pulling § 87(2)(b)'s arms, which he was holding close to his body. They were kneeling next to § 87(2)(b). PO Willabus was present but PO Ferrer did not recall what his specific involvement was. PO Ferrer did not see any officer with their asp or nightstick out but an asp was lying on the ground near the struggle. A large crowd had formed.

PO Ferrer, PO Hutchinson and PO Douglas exited the vehicle. PO Hutchinson remained near the vehicle to guard § 87(2)(b). PO Ferrer immediately approached § 87(2)(b) and grabbed his left hand, which was near his shoulder blade. § 87(2)(b) immediately attempted to bite him but PO Ferrer withdrew his hand before he could do so. PO Ferrer then went to the rear of the struggle and secured § 87(2)(b)'s legs. § 87(2)(b) was not kicking his legs. PO Ferrer did not know what PO Douglas did during the struggle or whether he had any involvement. None of the officers struck § 87(2)(b). PO Ferrer held § 87(2)(b)'s feet for several seconds.

PO Ferrer then observed narcotics spilling out of § 87(2)(b)'s waist area and began collecting them. PO Manaloris and Sgt. Hernandez handcuffed § 87(2)(b) at this point. PO Ferrer placed the narcotics into a Yankee hat. No force was used on § 87(2)(b) after he was handcuffed. PO Ferrer did not see any additional injuries on § 87(2)(b). PO Ferrer did not know how § 87(2)(b) sustained his injury. Several officers picked § 87(2)(b) up and placed him into a police van that had arrived. PO Ferrer and PO Hutchinson then drove § 87(2)(b) and the recovered narcotics back to the 90th Precinct stationhouse.

They parked in the back and walked § 87(2)(b) in through the back door. The van, with § 87(2)(b) inside, arrived simultaneously. § 87(2)(b) and § 87(2)(b) were brought inside and searched in front of the desk. Within ten minutes an ambulance responded to the back of the stationhouse. The ambulance responded to the back of the stationhouse because several civilians were present at the stationhouse on behalf of § 87(2)(b). PO Ferrer did not see § 87(2)(b) whom he knows, or § 87(2)(b) whom he also knows, inside the stationhouse.

The officers brought § 87(2)(b) out the back door of the stationhouse and placed him into the ambulance. Several people were present outside the gate to the stationhouse parking lot, where the officers were placing § 87(2)(b) into the ambulance. § 87(2)(b) was present. PO Ferrer did not recall if § 87(2)(b) was present but initially stated that he was "sure she was there." § 87(2)(b) asked the officers where they were taking § 87(2)(b). PO Ferrer told him that they were taking § 87(2)(b) to § 87(2)(b). None of the officers told any of the civilians that if they went to the hospital they would be arrested. None of the civilians requested any of the officers' names or shield numbers. § 87(2)(b), § 87(2)(b) and § 87(2)(b) know PO Ferrer from prior encounters. PO Ferrer rode in the ambulance to § 87(2)(b). PO Hutchinson also went to the hospital. They remained there for several hours at which time they were relieved and ended tour.

Medical Records (enc. 34A-V)

FDNY Ambulance Call Report

On § 87(2)(b), an FDNY ambulance responded to 211 Union Avenue (the 90th Precinct stationhouse) to treat § 87(2)(b). § 87(2)(b) suffered pain to his shoulders, arms and lower legs incident to assault. § 87(2)(b) complained of face pain. According to the report, § 87(2)(b)'s injuries were caused by resisting arrest. He had a laceration to his lower lip and ear lobe. § 87(2)(b) also had an abrasion to his forehead and swelling to his lower lip. The NYPD informed EMS that § 87(2)(b) had swallowed bags of heroin and cocaine.

§ 87(2)(b) Records

§ 87(2)(a) PBH §18(6)

Roll Call (enc. 35A-B)

Prisoner Holding Pen Roster (enc. 36A)

Medical Treatment of Prisoner Form (enc. 37A)

Command Log (enc. 38A)

Notice of Claim (enc. 39A)

Complainant Criminal Conviction History

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant CCRB History (enc. 7A-D)

§ 87(2)(b)

§ 87(2)(b)

Subject Officer CCRB History (enc. 6A-E)

The Civilian Complaint Review Board has not substantiated any allegations made against Sgt. Hernandez in his 8-year tenure. In CCRB case # 200700641, the Civilian Complaint Review Board substantiated an allegation that PO Michael Manaloris unlawfully detained § 87(2)(b). To date, the NYPD disposition is pending. In CCRB case # 200700641, the Civilian Complaint Review Board substantiated an allegation that PO Winston Willabus unlawfully detained § 87(2)(b). To date, the NYPD disposition is pending. The Civilian Complaint Review Board has not substantiated any allegations made against PO Kenneth Douglas in his 14-year tenure.

Conclusions and Recommendations

Officer Identification and Pleading Allegations

§ 87(2)(b) described Sgt. Hernandez as a 6'0" tall white male with a large build in his 30's. This description corresponds to Sgt. Hernandez's pedigree information. § 87(2)(g)

§ 87(2)(b) was unable to describe the officers who struck him with asps. § 87(2)(g)

§ 87(2)(b) viewed a photographic array and identified PO Douglas as the officer who threatened to arrest and refused to provide his badge number to her. § 87(2)(g)

Undisputed/Disputed Facts

On September 25, 2007, § 87(2)(b) and § 87(2)(b) engaged in a hand-to-hand drug transaction at § 87(2)(b) and § 87(2)(b) in Brooklyn and were arrested by members of the 90th Precinct SNEU team. § 87(2)(b) resisted being handcuffed and Sgt. Hernandez, PO Manaloris, and PO Willabus used physical force in order to handcuff him. PO Manaloris struck § 87(2)(b) several times with his asp in order to gain his compliance. § 87(2)(b) and § 87(2)(b) were taken to the 90th Precinct where § 87(2)(b) was strip-searched. § 87(2)(b) who was injured was taken to § 87(2)(b). Members of his family, including § 87(2)(b) were present at the stationhouse. § 87(2)(b) asked for PO Douglas' name and shield number and he provided his name. § 87(2)(g)

Assessment of Evidence

§ 87(2)(b) alleged that Sgt. Hernandez punched him in the face causing injury to his mouth. § 87(2)(g)

§ 87(2)(g) Sgt. Hernandez and PO Willabus both admitted that they punched § 87(2)(b) in order to subdue and handcuff him. PO Manaloris acknowledged that he struck § 87(2)(b) multiple times on his legs with his asp to gain control after he did not respond to verbal commands and other techniques the officers employed, § 87(2)(g)

While § 87(2)(b) was being placed into the ambulance, § 87(2)(b) alleged that PO Douglas threatened to arrest her if she went to § 87(2)(b) and provided his name but not shield number upon request. § 87(2)(g)

PO Douglas did not see any civilians outside the stationhouse nor did PO Manaloris. PO Willabus and PO Hutchinson saw civilians outside but did not recall the officers having any interaction with them. PO Ferrer and Sgt. Hernandez saw civilians inside the stationhouse, but not outside. Sgt. Hernandez also stated that he was not present when the officers placed § 87(2)(b) in the ambulance. § 87(2)(g)

Allegation A: At § 87(2)(b) and § 87(2)(b) in Brooklyn, Sergeant Antonio Hernandez used physical force against § 87(2)(b)

Allegation B: At § 87(2)(b) and § 87(2)(b) Michael Manaloris used physical force against § 87(2)(b)

Allegation C: At § 87(2)(b) and § 87(2)(b) in Brooklyn, Police Officer Winston Willabus used physical force against § 87(2)(b)

Allegation D: At § 87(2)(b) and § 87(2)(b) Michael Manaloris struck § 87(2)(b) with an asp.

§ 87(2)(g)

Patrol Guide procedure 203-11 which mandates that officers use the minimal amount of force necessary to take a person into custody (enc. 2A-B) § 87(2)(g)

it is recommended that allegations A, B, C, and D be closed as exonerated.

Allegation E: At § 87(2)(b) and § 87(2)(b) Sergeant Antonio Hernandez struck § 87(2)(b) with an asp.

§ 87(2)(g)

it is recommended that allegation E be closed as unsubstantiated.

Allegation F: At the 90th Precinct stationhouse, Sgt. Antonio Hernandez strip-searched § 87(2)(b)

According to Patrol Guide procedure 208-05 (enc. 3A-B) and FINEST interim message on strip-search (enc. 4A-B), a strip search may only be conducted when an officer reasonably suspects that weapons, contraband or evidence may be concealed upon the person in a manner that other searches did not discover. § 87(2)(g)

Therefore, it is recommended that allegation F be closed as exonerated.

Allegation G: At the 90th Precinct stationhouse, Police Officer Kenneth Douglas threatened to arrest § 87(2)(b)

§ 87(2)(g) it is recommended that allegation G be closed as unsubstantiated.

Allegation H: At the 90th Precinct stationhouse, Police Officer Kenneth Douglas refused to provide his name and/or shield number to § 87(2)(b)

Patrol Guide Procedure 203-09 requires officers to provide their name and/or shield number or otherwise provide it upon request (enc. 5A). § 87(2)(g)

it is recommended that allegation H be closed as unfounded.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: